

Ashok Kumar v. State of U.P.

Allahabad High Court · Division Bench · 10 October 2013 · WRIT - C No. 55952 of 2013 · **Writ disposed; petitioner relegated to Clause 6.5 complaint**

HEADNOTE

A consumer challenging an electricity bill of Rs.5,00,975 in writ was relegated to the statutory complaint under Clause 6.5 of the U.P. Electricity Supply Code, 2005, before the Executive Engineer, who was to look into the grievance and take appropriate action. The writ was disposed of without examining the bill on merits.

FACTUAL SUMMARY

Ashok Kumar filed a writ petition in the Allahabad High Court against an electricity bill dated 31 January 2012 demanding Rs.5,00,975. He pleaded that he had already represented to the Executive Engineer for withdrawal of the bill. Counsel for the licensee submitted that the proper remedy was a complaint before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench heard the petitioner, counsel for respondent no.2, and the Standing Counsel.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where a consumer challenges an electricity bill in writ, the available remedy is to file a complaint under Clause 6.5 of the U.P. Electricity Supply Code, 2005, before the Executive Engineer, who may look into the grievance and take appropriate action; the writ is disposed of on that footing without a merits decision on the bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL DATED 31 JANUARY 2012 DEMANDING RS.5,00,975 WAS VALID

Left to the Executive Engineer on a Clause 6.5 complaint ¶ 1